SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 632

22STUD06657 September 2, 2026
FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY 8:30 AM

Judge: Honorable Mike H. Madokoro
Judicial Assistant: B. Colocho and A. Llamas (JAT)
Courtroom Assistant: None

CSR: None
ERM: Proceedings Electronically Recorded
Deputy Sheriff: A. Alvarez

APPEARANCES:

For Plaintiff(s): Tracey Merrell for Ada R Cordero-Sacks via LACourtConnect

For Defendant(s): No Appearances

NATURE OF PROCEEDINGS: Hearing on Motion to Set Aside/Vacate Default and Default Judgment (CCP 473.5)

The matter is called for hearing.

By 9:51 AM, the Court confirmed with the Judicial Assistant that no appearances, either remote or in-person had been made by or for Defendant(s).

The Court has read and considered all documents filed herein connection regarding Defendant's Motion to Set Aside/Vacate Default and Default Judgment.

Counsel for Plaintiff appears in opposition.

The Court issues an Oral Tentative Ruling.

Counsel for Plaintiff submits on the Court's Tentative Ruling.

After reading and considering all moving papers, the Court adopts its Tentative Ruling as the Final Ruling as follows:

The Motion for Order Motion to Vacate Void Default and Default Judgment and, Upon Vacatur, Reinstate Action to Active Calendar, with alternative CCP 1008(b) relief and evidentiary-hearing request. filed by Derrick L. Beverly on 08/17/2026 is Denied.

This is not Defendant’s first motion seeking to set aside the default and default judgment. Thus, it is a renewed motion to set aside or a motion for reconsideration of the court’s previous denial, subject to Code of Civil Procedure §§ 1008(a) or (b). Considering the motion as such it must be denied, as Defendant has not submitted an affidavit or declaration stating “what application was

made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown."

Moreover, it fails on its merits. Relief pursuant to Code of Civil Procedure § 473(d) is denied because Defendant has not offered credible evidence to rebut the testimony of Plaintiff's registered process server regarding personal service of the summons and complaint on him on October 27, 2022. (Evid. Code § 647 ["The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return."]; Palm Property Investments, LLC v. Yadegar (2011) 194 Cal.App.4th 1419, 1428 ["The effect of a presumption affecting the burden of producing evidence is to require the trier of fact to assume the existence of the presumed fact unless and until evidence is introduced which would support a finding of its nonexistence. . ."].)

Defendant has also not submitted any authority or evidence which demonstrates that the underlying judgment is otherwise void.

Clerk to give notice.

Certificate of Service is attached.